

DOCUMENT D — CFPB COMPLAINT NARRATIVE

Filed against: DNF Associates, LLC AND Fortiva Retail Credit / The Bank of Missouri

Portal: consumerfinance.gov/complaint

COMPLAINT NARRATIVE:

I am filing this complaint against DNF Associates, LLC and Fortiva Retail Credit (issued by The Bank of Missouri) for collection of a fraudulently originated debt, FDCPA violations, and FCRA violations.

THE FRAUD:

A Fortiva Retail Credit account (ending 9302) was opened in my name as a direct result of fraudulent misrepresentation by a Vivint sales representative, who verbally promised a 30-day free trial while the written contract concealed a 3-day trial period. I never authorized or benefited from the underlying service. I made repeated requests to Fortiva to close the account; Fortiva refused. Fortiva subsequently charged off the account and sold it to DNF Associates, LLC on or about 05/15/2026.

FDCPA VIOLATIONS (15 U.S.C. § 1692g):

I sent DNF Associates a formal debt validation demand pursuant to § 1692g, requiring complete validation including the original signed contract, itemized accounting, proof of Texas debt-collector licensing, and chain of title from Fortiva. DNF Associates is required to cease all collection activity until validation is provided.

FCRA VIOLATIONS (15 U.S.C. § 1681s-2(a) / § 1681c-2):

Fortiva and DNF Associates have furnished, or threaten to continue furnishing, information about this fraudulently originated account to Equifax, Experian, and TransUnion, in violation of FCRA's prohibition on furnishing information known or reasonably believed to be inaccurate. I have filed an FTC Identity Theft Report and invoked my § 1681c-2 blocking rights with all three bureaus.

HARM:

- Balance claimed: \$1,693.14
- Account sold from Fortiva to DNF Associates on or about 05/15/2026
- Fraudulent tradeline is actively damaging my consumer credit report

RESOLUTION REQUESTED:

1. Full investigation of DNF Associates' acquisition and collection of this fraudulently originated debt
2. Full investigation of Fortiva's sale of a disputed, fraudulently originated account to a third-party collector
3. Cancellation of the \$1,693.14 balance in its entirety
4. Deletion of all tradeline information from all three credit bureaus
5. Written confirmation of cancellation and deletion

Account Details:

- Original creditor: Fortiva Retail Credit / The Bank of Missouri
- Account ending: 9302

- Current holder: DNF Associates, LLC — 2351 North Forest Road, Getzville, NY 14068
- Sale date: On or about 05/15/2026
- Balance: \$1,693.14

FTC Identity Theft Report #: 202816785

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